

BREYER, J., dissenting

to an individual dismissed by her employer (a Member of Congress) on the basis of her sex in violation of the equal protection component of that Amendment’s Due Process Clause. And in *Carlson v. Green*, 446 U. S. 14 (1980), the Court held that the Eighth Amendment provides a damages remedy to a prisoner who died as a result of prison officials’ deliberate indifference to his medical needs, in violation of the Amendment’s prohibition against cruel and unusual punishment.

It is by now well established that federal law provides damages actions at least in similar contexts, where claims of constitutional violation arise. Congress has ratified *Bivens* actions, plaintiffs frequently bring them, courts accept them, and scholars defend their importance. See J. Pfander, *Constitutional Torts and the War on Terror* (2017) (canvassing the history of *Bivens* and cataloging cases). Moreover, the courts, in order to avoid deterring federal officials from properly performing their work, have developed safeguards for defendants, including the requirement that plaintiffs plead “plausible” claims, *Ashcroft v. Iqbal*, 556 U. S. 662, 679 (2009), as well as the defense of “qualified immunity,” which frees federal officials from both threat of liability and involvement in the lawsuit, unless the plaintiffs establish that officials have violated “‘clearly established . . . constitutional rights,’” *id.*, at 672 (quoting *Harlow v. Fitzgerald*, 457 U. S. 800, 818 (1982)). “[This] Court has been reluctant to extend *Bivens* liability ‘to any new context or new category of defendants.’” *Iqbal*, *supra*, at 675 (quoting *Correctional Services Corp. v. Malesko*, 534 U. S. 61, 68 (2001)). But the Court has made clear that it would not narrow *Bivens*’ existing scope. See *FDIC v. Meyer*, 510 U. S. 471, 485 (1994) (guarding against “the evisceration of the *Bivens* remedy” so that its “deterrent effects . . . would [not] be lost”).

The plaintiffs before us today seek damages for unconstitutional conditions of confinement. They alleged that federal officials slammed them against walls, shackled them, exposed them to nonstop lighting, lack of hygiene, and the like, all